

# HOUSE . . . . . No. 5628

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## The Commonwealth of Massachusetts

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HOUSE OF REPRESENTATIVES, August 6, 2026.

The committee on Children, Families and Persons with Disabilities, to whom was referred the petition (accompanied by Bill, House No. 5286) of Brian W. Murray relative to specific medical diagnoses of certain children involved with the Department of Children and Families, reports recommending that the accompanying bill (House, No. 5628) ought to pass.

For the committee,

JAY D. LIVINGSTONE.

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
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An Act relative to specific medical diagnoses regarding the Department of Children and Families.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           Section 51B of chapter 119 of the General Laws, as appearing in the 2024 Official  
2 Edition, is hereby amended by inserting after subsection (b) the following subsection:-

3           (b $\frac{1}{2}$ ) If the parent, guardian or other caretaker provides evidence that the child has a  
4 preexisting diagnosis of rickets, Ehlers-Danlos syndrome, osteogenesis imperfecta, vitamin D  
5 deficiency or any other medical condition known to appear or be caused by, or known to be  
6 misdiagnosed as, abuse, the department shall consult with a physician or advanced practice  
7 registered nurse who routinely provides medical care to pediatric patients. If the physician or  
8 registered nurse deems it appropriate, they may conduct an examination of the child to advise on  
9 whether the symptoms of suspected abuse or neglect are likely to have been caused by a medical  
10 condition.